

Trust Selection Guide

Module 17 — Which Trust (If Any) Is Right?

DO YOU NEED A TRUST?

Do you own real estate? ■ Yes ■ No

Is your estate over \$100,000? ■ Yes ■ No

Do you want to avoid probate? ■ Yes ■ No

Do you have privacy concerns? ■ Yes ■ No

Is Medicaid planning needed within 10 years? ■ Yes ■ No

Do you have a blended family? ■ Yes ■ No

Do you own property in multiple states? ■ Yes ■ No

If 3+ Yes: A trust is likely beneficial. Consult an elder law attorney.

TRUST TYPE COMPARISON

Feature	Revocable Living Trust	Irrevocable Trust / MAPT
Can you change it?	Yes, anytime	No (generally)
Avoids probate?	Yes	Yes
Protects from Medicaid?	No	Yes (after 5 years)
Protects from creditors?	No	Yes
Incapacity management?	Yes (successor trustee)	Yes (trustee)
Cost to create	\$2,500-\$5,000	\$3,000-\$7,000
Best for	Probate avoidance, privacy	Asset protection, Medicaid planning

My recommended trust type: _____

Attorney: _____ **Appointment:** _____